



**UNITED STATES DEPARTMENT OF EDUCATION
OFFICE FOR CIVIL RIGHTS**

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NORTH DAKOTA
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October 9, 2020

Mr. Aco Sikoski
Chancellor
Ivy Tech Community College - [Redacted Content]
Sent by email only to asikoski@ivytech.edu

Re: OCR Docket #05-20-2348

Dear Mr. Sikoski:

This is to notify you that the U.S. Department of Education (Department), Office for Civil Rights (OCR), has completed its complaint resolution activities regarding the above-referenced complaint filed with OCR against Ivy Tech Community College (College) alleging discrimination on the basis of disability.

Specifically, the complaint alleged that the College subjected a student at its [Redacted Content] campus (Student A) to discrimination on the basis of disability when it: 1) in [Redacted Content], did not provide Student A [Redacted Content] for a review session in his [Redacted Content] class; 2) in [Redacted Content], did not provide Student A [Redacted Content] for the [Redacted Content]; and 3) in [Redacted Content], did not provide Student A [Redacted Content] for two classes.

OCR is responsible for enforcing Section 504 of the Rehabilitation Act of 1973 (Section 504), 29 U.S.C. § 794, and its implementing regulation, at 34 C.F.R. Part 104, which prohibits discrimination on the basis of disability by recipients of Federal financial assistance. OCR is also responsible for enforcing Title II of the Americans with Disabilities Act of 1990 (Title II), 42 U.S.C. §§ 12131 - 12134, and its implementing regulation, at 28 C.F.R. Part 35, which prohibits discrimination on the basis of disability by public entities. As a recipient of Federal financial assistance from the Department and a public entity, the College is subject to these laws.

During its investigation, OCR reviewed information provided by Student A and the College and interviewed College personnel. Prior to OCR making a finding in the case, the College agreed to the enclosed Resolution Agreement (Agreement) to resolve the allegations. The basis for OCR's determination that the Agreement is appropriate is set forth below.

Legal Standards

The standards adopted by Title II were designed not to restrict the rights or remedies available under Section 504. OCR has determined that the Title II regulations applicable to the issues raised in this complaint do not provide greater protection than the applicable Section 504

regulations. Therefore, OCR has applied the relevant Section 504 standards in its analysis of this complaint.

The Section 504 regulation, at 34 C.F.R. § 104.44(a), requires a college to modify its academic requirements as necessary to ensure that such requirements do not discriminate or have the effect of discriminating on the basis of disability against a qualified student with a disability. The Section 504 regulation, at 34 C.F.R. § 104.44(d), requires a college to ensure that no qualified individual with a disability is denied the benefits of, excluded from participation in, or otherwise subjected to discrimination because of the absence of educational auxiliary aids for students with impaired sensory, manual, or speaking skills.

Background

Student A enrolled in the College in [Redacted Content] and registered as a student with a disability through the College's Disability Support Services (DSS) office on [Redacted Content]. Student A's DSS Registration form dated [Redacted Content], indicated that he requested, among other items, [Redacted Content]. The College provided a Faculty Notification Form (FNF) dated [Redacted Content], indicating that Student A was to receive [Redacted Content] in [Redacted Content]. No FNF was provided to OCR for the [Redacted Content] semester but the email record and testimony to OCR from the Director of DSS for the [Redacted Content] campuses ([Redacted Content] Director) confirmed that Student A was approved to receive [Redacted Content] in [Redacted Content].

The College's DSS Policies and Procedures Manual (DSS Manual)¹ states that once a student's disability-related documentation and request for academic adjustments has been reviewed, the student will be notified either by email or letter of the status of their request for academic adjustments. No such documentation was provided to OCR with regard to Student A. The DSS Manual states that students "must complete their 'Accommodation Request Form' prior to the start of each semester" and states that an FNF will be issued for each class, identifying the adjustments in place for the class, and says the FNF is to be signed by both the instructor and the student. The DSS Manual states that when a student's disability requires special arrangements, including for the use of interpreters, instructors should be notified ahead of time via Instructor Letters. The College provided OCR with the letter sent to the instructor for [Redacted Content], which stated that Student A would be using [Redacted Content] and said, "The student may also be utilizing [Redacted Content]."²

The DSS Manual contains an appendix entitled, "Expectations for Students Receiving [Redacted Content]," which states, "The student agrees to provide DSS with at least one month notice prior to making a request for [Redacted Content]." Student A provided OCR a copy of an appendix with the same heading that specifically referenced the [Redacted Content] campus ([Redacted Content] Notice), which says, "The student agrees to make requests for [Redacted Content] ... with at least one week's advance notice. Efforts will be made to fill requests of this nature but cannot be guaranteed and are contingent on availability if not submitted in writing or are made

¹ <https://www.ivytech.edu/files/DSS-Policies-Procedures-Manual.pdf>.

² No letter was provided for [Redacted Content], but an email to the professor with an attachment entitled "faculty letter for [Redacted Content]" was provided.

less than one week in advance of the requested date.” The [Redacted Content] Notice also says, “The student acknowledges that [DSS] will respond to requests within 48 hours. Requests made in less than 48 hours of appointment time will be filled with [Redacted Content].” The DSS Manual does not provide guidance regarding events scheduled by faculty with less than the required notice.

Facts

Allegation #1

Student A asserted that he and other students received an email from the professor of his [Redacted Content] class on [Redacted Content], notifying them that they could retake an exam the following Monday, and provided OCR a copy of this email. Student A also provided an email that the professor sent him on [Redacted Content] stating that she would be in the office at 8:00 a.m. the next day ([Redacted Content]) to answer questions. He stated that the professor said this was the only available time due to midterm grades being due on [Redacted Content]. Student A stated that he did not ask the professor to reschedule the exam to allow him to obtain [Redacted Content] for the session with her, because she had provided a firm reason for [Redacted Content] being the only available date.

Student A emailed the [Redacted Content] Director and the Director of DSS for the [Redacted Content] campuses ([Redacted Content] Director)³ on [Redacted Content]. He wrote that he had learned that his [Redacted Content] professor was letting everyone retake an exam and that she would explain some of the problems to him and would only be in her office for a short time so he needed [Redacted Content] for a session at 8:00 a.m. The [Redacted Content] Director replied at 7:36 a.m. the next morning and stated that [Redacted Content] could not be arranged on such short notice.⁴ Student A replied at 8:41 a.m., explaining the short notice and inquiring if he could use “the device that is supposed to be available to me in this situation,” referring to the [Redacted Content]. The [Redacted Content] Director responded at 8:45 a.m. that the [Redacted Content] was not in [Redacted Content] because she did not know it was needed there. She did not offer any other alternative adjustment but stated that she would ask the [Redacted Content] Director to work with the professor to reschedule the exam and stated, “Maybe she will reschedule if we advocate for you.”

The professor could not recall this review session but stated that she often had review sessions open to all students and also often met with Student A individually. The professor asserted that her practice was to inform students in advance of the review session and believes she probably did so on [Redacted Content], but did not provide contemporaneous documentation evidencing such statement. She stated that she believes she gave at least two days advance notice to Student A for meetings.

³ The [Redacted Content] Director stated to OCR that she filled in for the [Redacted Content] Director when the [Redacted Content] Director was out of the office, which is how Student A obtained her contact information.

⁴ Neither Director could remember why the [Redacted Content] Director rather than the [Redacted Content] Director had responded to Student A’s email, but stated to OCR that it could have been because the [Redacted Content] Director was out of the office or because the [Redacted Content] Director saw the email first that day and wanted to respond quickly due to the nature of the request.

The [Redacted Content] Director stated that when requests are made on short notice, they try to work with the student to reschedule the appointment first because they try to [Redacted Content], which is difficult on short notice. Both Directors stated that it was impossible to secure [Redacted Content] for a request made after hours for the next morning because the staff would not see the request until the morning of the event but did not discuss what they do to identify effective alternatives under those circumstances.

The [Redacted Content] Director stated that the College has [Redacted Content] that is shared with the [Redacted Content] campus and other campuses in the [Redacted Content] part of the state. The [Redacted Content] Director acknowledged that the [Redacted Content] was an option when [Redacted Content] were not available under certain circumstances. The [Redacted Content] Director also stated that [Redacted Content] is designed for [Redacted Content] and is not practical for, and not used in, group settings and therefore would not have been appropriate for a group study session like the one for which Student A requested it in [Redacted Content]. The [Redacted Content] Director stated to OCR that when the [Redacted Content] was required she contacted the [Redacted Content] Director and arranged for it to be delivered or to pick it up. She stated that it usually took one day to receive. Student A asserted that it was discriminatory for the College not to have the [Redacted Content] present at his campus for use when needed. The [Redacted Content] Director also stated to OCR that Student A could use his laptop or any computer on campus for [Redacted Content], but this alternative was not expressly identified as an approved academic adjustment.

Allegation #2

Student A asserted that the College failed to provide him [Redacted Content] for the [Redacted Content], which was [Redacted Content] long. Student A stated that the [Redacted Content] failed to show up [Redacted Content] and he alerted the [Redacted Content] Director immediately. The College stated to OCR that it learned the [Redacted Content] and would not be able to [Redacted Content].

The [Redacted Content] Director told OCR that she immediately began searching for [Redacted Content] by reaching out to her contacts, including a [Redacted Content], and emailing the professor for help in [Redacted Content]. Documentation from the College confirmed that the [Redacted Content] Director emailed the professor in an attempt to [Redacted Content]. The [Redacted Content] Director stated to OCR that it is difficult [Redacted Content] given the [Redacted Content]. The [Redacted Content] Director stated and documentation confirmed that, on [Redacted Content], she requested that the professor provide [Redacted Content].⁵

Student A emailed both Directors on [Redacted Content], approximately [Redacted Content] into the class, requesting interim adjustments because of the lack of [Redacted Content]. He stated that his grade was being affected by the lack of [Redacted Content] and requested that the Directors arrange with the professor to give him additional points for problems he missed on quizzes and exams and for extra time on assignments until [Redacted Content]. The [Redacted Content] Director stated that she did not grant the request for extra points because DSS does not alter grading on tests. Student A informed the [Redacted Content] Director in an email that he

⁵ The evidence indicated that the notes provided were the same given to everyone in the class.

needed [Redacted Content] to help him understand the professor's notes. The College located [Redacted Content] for Student A for the [Redacted Content] of the course. The professor did not recall any communications regarding [Redacted Content] and did not recall Student A not having [Redacted Content].

Student A received a [Redacted Content] in [Redacted Content]. Student A stated that the lack of [Redacted Content] negatively affected his grade. Student A emailed the Directors several times to explain that the lack of [Redacted Content] was hurting his grade. In response, the [Redacted Content] Director replied that [Redacted Content] were available to all students.

Allegation #3

In [Redacted Content], Student A was enrolled in the [Redacted Content] and also [Redacted Content]. The first day of classes was [Redacted Content].

Student A told the [Redacted Content] Director at the end of the [Redacted Content] semester that he did not want to use [Redacted Content]. On [Redacted Content], the [Redacted Content] Director emailed Student A to say that [Redacted Content]. The email also stated, "I will continue to look for [Redacted Content] for you this semester" (emphasis in original).

The [Redacted Content] Director told OCR that she started looking for [Redacted Content] immediately when Student A described how [Redacted Content]; she said she attempts to find a [Redacted Content] if a student requests one. The [Redacted Content] Director stated that she contacted the [Redacted Content] professors and reached out to students who had been [Redacted Content] to expedite the process. She stated that she was able to [Redacted Content] and that Student A found [Redacted Content]. An email dated [Redacted Content], from Student A to the [Redacted Content] Director confirmed that he found [Redacted Content].⁶

The [Redacted Content] Director stated that while she was seeking [Redacted Content], she requested [Redacted Content] from both professors in the interim and kept [Redacted Content] and let Student A know that [Redacted Content], but he refused to [Redacted Content]. Documentation confirmed that the [Redacted Content] Director emailed the professors requesting [Redacted Content] and that the [Redacted Content] professor provided [Redacted Content]. The Director emailed Student A that the [Redacted Content] professor would [Redacted Content].

Student A received a [Redacted Content] and a [Redacted Content] in [Redacted Content].

Analysis and Conclusion

In accordance with Section 302 of OCR's *Case Processing Manual*, a complaint may be resolved at any time when, prior to the conclusion of an investigation, the recipient expresses an interest in resolving the complaint. Prior to the conclusion of OCR's investigation, the College expressed interest in resolving the complaint. OCR determined that a resolution agreement with the College is appropriate under the circumstances presented by this case.

⁶ The [Redacted Content] Director stated that she tried to [Redacted Content].

Based on the evidence collected to date, OCR has identified compliance concerns regarding the College's provision of necessary academic adjustments and auxiliary aids to Student A. While Student A's [Redacted Content] request for [Redacted Content] was made a day prior to the need for [Redacted Content], the professor did not give students advance notice of the session and the College could not [Redacted Content] prior to the session. Further, the College did not consider what other effective auxiliary aids or adjustments could be provided. Although an email to Student A suggested that they would advocate on his behalf, no documentation indicated that the DSS officials actually contacted [Redacted Content] to attempt to secure an extension of time or alternative arrangements for Student A to provide him an equal opportunity to participate as was provided to other students. While the College's policies state that in such cases [Redacted Content] would be made available, this did not occur because no such system was available for Student A.

In addition, OCR also has concerns with the lack of timely provision of [Redacted Content] for Student A in his [Redacted Content] class and the process for acquiring a [Redacted Content] in his [Redacted Content] classes. Student A notified DSS that he was [Redacted Content] and went without [Redacted Content] and ultimately had to locate [Redacted Content]; the documentation did not indicate whether any other adjustments were made during the time when no [Redacted Content] was provided in [Redacted Content]. OCR has not yet determined whether the College's actions constituted discrimination based on disability against Student A.

The enclosed Agreement, when fully implemented, will address all of the allegations investigated. The provisions of the Agreement are aligned with the allegations in the complaint and the information obtained during OCR's investigation to date and are consistent with the applicable regulations. OCR will monitor the implementation of the Agreement.

This concludes OCR's resolution activities regarding the complaint and should not be interpreted to address the College's compliance with any other regulatory provision or to address any issues other than those addressed in this letter. The letter sets forth OCR's determination in an individual OCR case. This letter is not a formal statement of OCR policy and should not be relied upon, cited, or construed as such. OCR's formal policy statements are approved by a duly authorized OCR official and made available to the public.

Please be advised that the College may not harass, coerce, intimidate, or discriminate against any individual because he or she has filed a complaint or participated in the complaint resolution process. If this happens, the individual may file another complaint alleging such treatment.

Under the Freedom of Information Act, it may be necessary to release this document and related correspondence and records upon request. In the event that OCR receives such a request, we will seek to protect, to the extent provided by law, personally identifiable information, which, if released, could reasonably be expected to constitute an unwarranted invasion of privacy.

The Complainant may file a private suit in Federal court, whether or not OCR finds a violation.

OCR would like to thank the College for the cooperation and courtesy extended to OCR during our investigation. In particular, we wish to thank Mr. James Clark, Counsel for the College. If you have any questions regarding this matter, please contact Charles Bryans, OCR Attorney, at 312-730-1623 or by email at Charles.Bryans@ed.gov.

Sincerely,

Jeffrey Turnbull
Team Leader

Enclosure

cc: Mr. James Clark (sent via email only to jclark@ivytech.edu)